

Terms of Use

1. General information

- 1.1. Valory AG ("Valory," "we," "us," or "our"), a public limited company (specifically an Aktiengesellschaft) located at Gubelstrasse 12, 6300 Zug, Switzerland (Company Registration No.: CHE-355.652.627), is the premier creator of open-source autonomous software systems. These Terms of Use (the "Terms," "Terms of Use" or "Agreement") contain the terms and conditions that govern your access to and use of current and future offerings ("Offerings" or "the Offerings", see Section 1 and 2) provided by us and our affiliates and is an agreement between us and You or the entity You represent ("You" or "our"). Each of Valory and You may be referred to individually as "Party" and collectively as the "Parties".
- 1.2. Valory is the owner and operator of the top-level domain website, valory.xyz (hosted via Wix.com) that serves information regarding Valory and our Offerings, as defined below, as well as any sub-domains thereof for our products or services (e.g. propel.valory.xyz), the top-level domains with the sub-domains collectively referred to as "the Sites" or "Sites", which include text, images, audio, code and other materials or third party information.
- 1.3. Valory's Offerings means products and services, including without limitation the Sites, online and mobile websites, platforms, services, applications, content, functionality and networks owned and/or operated by Valory and any other products and services, including but not limited to Propel, and any other features, tools, materials, or services offered from time to time, by us or our affiliates. "Propel" is a product and brand of Valory AG.
- 1.4. Please read these Terms of Use carefully before using the Offerings. By using the Sites, clicking a button or checkbox to accept or agree to these Terms where that option is made available, clicking a button to use or access any of the Offerings, purchasing paid access to any Offerings, or, if earlier, using or otherwise accessing the Offerings (the date on which any of the events listed above occur being the "Effective Date"), You (1) acknowledge that You have read and understood these Terms and agree to be bound by these Terms and comply with them and any additional terms, rules and conditions of participation issued by Valory from time to time and (2) consent to the collection, use, disclosure and other handling of information as described in our Privacy Policy (located at <https://valory.xyz/privacy/>). If You do not agree to the Terms or perform any and all obligations you accept under the Terms, then you may not access or use the Offerings. In order to operate and provide the Offerings, we collect certain information about You. We use and protect that information as described in our Privacy Policy. You acknowledge and agree that your use of the Sites is subject to our Privacy Policy and understand that it identifies how Valory collects, stores, processes and uses certain information. If You are dissatisfied with any portion of the Offerings or these Terms, your sole and exclusive remedy is to discontinue use of the relevant Offering(s).

- 1.5. By giving your consent, You confirm that your level of English is sufficient to understand the meaning of the terms contained in the English version of the Terms as well as the commitments, warranties, waivers and obligations contained in the English version of the Terms.
- 1.6. You represent to us that You are lawfully able to enter into contracts. If You are entering into this agreement for an entity, such as the entity You work for, You represent to us that You have legal authority to bind that entity. Please see Section 16 for definitions of certain capitalized terms used in this Agreement.
- 1.7. In addition, You represent to us that You and your entities, or any party that owns or controls You or your entities, are (1) not subject to sanctions or otherwise designated on any list of prohibited or restricted parties, including but not limited to the lists maintained by the United Nations Security Council, the U.S. Government (i.e., the Specially Designated Nationals List and Foreign Sanctions Evaders List of the U.S. Department of Treasury and the Entity List of the U.S. Department of Commerce), the European Union or its Member States, or other applicable government authority and (2) not located in any country subject to a comprehensive sanctions program implemented by the United States.

2. The Offerings

- 2.1. Generally. You may access and use the Offerings in accordance with this Agreement. You agree to comply with the terms of this Agreement and all laws, rules and regulations applicable to your use of the Offerings.
- 2.2. Offerings and Access. As in Section 1, Valory offers a number of products and services, each an "Offering", under the Valory brand or brands owned by us. These include Valory™, Autonolas™, OIas™, Pearl™, and Agents Unleashed™ brands and other brands and marks created by Valory, and any relevant Brand and Press Kits which further describe and govern use of the trademarks, for example that of [Valory](#) and [OIas](#). For the avoidance of doubt, the OIas™ brand and related trademark constitute an Offering of Valory, but the OIas technology, protocol and or decentralized autonomous organization (DAO) operating under the "OIas" name (see <https://olas.network>) are independent open-source or community-governed initiatives and are not Offerings of Valory and not under Valory control. Offerings are generally accessed through the Sites or through a third party provider of which we approved, unless otherwise agreed in writing. For example, the Pearl terms can be found [here](#). Some Offerings may require You to create an account, enter a valid form of payment, and select a paid plan (a "Paid Plan"), or initiate an Order. The Offerings may not be available in all territories and jurisdictions. Access to the Offerings may not be legal by certain persons or in certain countries. We may restrict or prohibit use of all or a portion of the Sites or Offerings in certain territories and jurisdictions. If You access the Offerings, including Sites, You do so on your own initiative and are responsible for compliance with all local laws and regulations.
- 2.3. Third-Party Content. In certain Offerings, Third-Party Content may be used by You at your election. Third-Party Content is governed by this Agreement and, if applicable,

separate terms and conditions accompanying such Third-Party Content, which terms and conditions may include separate fees and charges.

- 2.4. Third-Party Offerings. When you use our Offerings, You may also be using the products or services of one or more third parties. Your use of these third party offerings may be subject to the separate policies, terms of use, and fees of these third parties. Valory is not responsible for the acts, omissions, or availability of any third-party offerings, integrations, or networks (including blockchain networks), and your use of such third-party services is at your own risk.

3. Changes

- 3.1.To the Offerings. We may change or discontinue any or all of the Offerings or change or remove functionality of any or all of the Offerings from time to time. We will use commercially reasonable efforts to communicate to You any material change or discontinuation of an Offering through the Sites or public communication channels.

If You are on a Paid Plan, for example You have a Propel subscription (learn more at <https://propel.valory.xyz>), we will use commercially reasonable efforts to communicate to You any material changes to or discontinuation of the Offering at least 30 days in advance of such change, and we will use commercially reasonable efforts to continue supporting the previous version of the Offering for up to three months after the change or discontinuation, except if doing so (a) would pose an information security or intellectual property issue, (b) is economically or technically burdensome, or c) would create undue risk of us violating the law. We will not be liable to You or any third party for any modification, suspension, or discontinuation of any Offering.

- 3.2.To the Sites. Valory reserves the right to change, suspend, remove, discontinue or disable access to the Sites or particular portions thereof, at any time and without notice. In no event will Valory be liable for necessary removals of or disabling of access to any portion or feature of the Sites.

- 3.3.To this Agreement. We reserve the right, at our sole discretion, to modify or replace any part of this Agreement or any policies at any time, effective immediately upon posting from time to time. It is your responsibility to check this Agreement periodically for changes, but we will also use commercially reasonable efforts to communicate any material changes to this Agreement through the Sites or other public channels. Your continued use of or access to the Offerings following the posting of any changes to this Agreement constitutes acceptance of those changes, with or without having explicitly accepted the new terms.

4. Your Responsibilities

- 4.1.Your accounts. For those Offerings that require an account, and except to the extent caused by our breach of this Agreement, (a) You are responsible for all activities that occur under your account, regardless of whether the activities are authorized by You or undertaken by You, your employees or a third party (including your contractors, agents or other end users), including ensuring that any information You provide on the Sites or Offerings, for example in order to access the Sites or Offerings, is current, complete and accurate, and (b) we and our

affiliates are not responsible for unauthorized access to your account, including any access that occurred as a result of fraud, phishing, or other criminal activity perpetrated by third parties. You are solely responsible for maintaining adequate security and control of any IDs, passwords, private keys, or other credentials used to access the Offerings. You agree to use reasonable security measures to prevent unauthorised access. Valory disclaims any responsibility for Losses arising from your failure to maintain such security.

4.2. Your Use. You are responsible for all activities that occur through your use of the Offerings that do not require an account, except to the extent caused by our breach of this Agreement, regardless of whether the activities are authorized by You or undertaken by You, your employees or a third party (including your contractors, agents or other end users). We and our affiliates are not responsible for unauthorized access that may occur during your use of the Offerings, including any access that occurred as a result of fraud, phishing, or other criminal activity perpetrated by third parties. You will ensure that your use of the Offerings does not violate any applicable law. You agree You are responsible for obtaining and maintaining all connectivity, computer software, hardware and other equipment needed for access to and use of the Offerings and all charges related to the same. You agree that all persons who access the Sites through your internet connection are aware of these Terms of Use and comply with them.

4.3. Your security and backup. You are solely responsible for properly configuring and using the Offerings and otherwise taking appropriate action to secure, protect and backup your accounts and/or Your Content in a manner that will provide appropriate security and protection, which might include use of encryption. This includes your obligation under this Agreement to record and securely maintain any passwords or backup security phrases (i.e. "seed" phrases) that relate to your use of the Offerings. You acknowledge that You will not share with us nor any other third party any password or backup/seed phrase that relates to your use of the Offerings, and that we will not be held responsible if You do share any such phrase or password.

4.4. Log-in credentials and API authentication. To the extent we provide You with log-in credentials and API authentication generated by the Offerings, such log-in credentials and API authentication are for your use only and You will not sell, transfer or sublicense them to any other entity or person, except that You may disclose your password or private key to your agents and subcontractors performing work on your behalf.

5. Fees and Payment

5.1. Publicly available Offerings. Some Offerings may be offered to the public and licensed on a royalty free basis, including Offerings that require a Paid Plan for software licensing fees above a certain threshold of use.

5.2. Offering fees. If your use of an Offering does not require an Order or Paid Plan but software licensing fees are charged contemporaneously with your use of the Offering, those fees will be charged as described on the Sites or in the user interface of the Offering. Such fees may be calculated by combining a fee charged by us and a fee charged by a Third Party Offering

that provides certain functionality related to the Offering. For those Offerings which entail an Order or Paid Plan, we calculate and bill fees and charges according to your Order or Paid Plan. For such Offerings, on the first day of each billing period, You will pay us the applicable fees based on the Offerings in the Paid Plan (the "Base Fees") and any applicable taxes. In addition, we may, for particular Orders, issue an invoice to You for all charges above the applicable threshold for your Paid Plan which constitute overage fees for the previous billing period. If You make any other changes to the Offerings during a billing period (e.g. upgrading or downgrading your Paid Plan), we will apply any additional charges or credits to the next billing period. We may bill You more frequently for fees accrued at our discretion upon notice to You. You will pay all fees in U.S. dollars unless the particular Offering specifies a different form of payment or otherwise agreed to in writing. All amounts payable by You under this Agreement will be paid to us without setoff or counterclaim, and without any deduction or withholding. Fees and charges for any new Offering or new feature of an Offering will be effective when we use commercially reasonable efforts to communicate updated fees and charges through our Sites or other public channels or, if You are on a Paid Plan, upon commercially reasonable efforts to notify You, unless we expressly state otherwise in a notice. We may increase or add new fees and charges for any existing Offerings You are using by using commercially reasonable efforts to notify users of the Offerings through our Sites or other public channels or, if You are on a Paid Plan, by giving You at least 30 days' prior notice. Unless otherwise specified in an Order, if You are on a Paid Plan, all amounts due under this Agreement are payable within thirty (30) days following receipt of your invoice. We may elect to charge You interest at the rate of 1.5% per month (or the highest rate permitted by law, if less) on all late payments. We reserve the right to suspend or terminate your access to the Offerings for violation of these Terms, e.g. for non-payment without prior notice. All fees are non-refundable except as expressly stated herein. Valory shall not be liable for any pricing, exchange rate, valuation, or other errors, discrepancies, or inaccuracies related to digital asset payments, whether caused by us, third parties, or market fluctuations, and You assume all risk associated with such transactions

5.3.Taxes. Each party will be responsible, as required under applicable law, for identifying and paying all taxes and other governmental fees and charges (and any penalties, interest, and other additions thereto) that are imposed on that party upon or with respect to the transactions and payments under this Agreement. All fees payable by You are exclusive taxes unless otherwise noted. We reserve the right to withhold taxes where required.

6. Temporary Suspension

6.1.Generally. We may suspend your right to access or use any portion or all of the Offerings immediately if we determine:

- (a) your use of the Offerings (i) poses a security risk to the Offerings or any third party, (ii) could adversely impact our systems, the Offerings or the systems of any other user, (iii) could subject us, our affiliates, or any third party to liability, or (iv) could be unlawful;
- (b) You are, or any End User is, in breach of this Agreement;

(c) You are in breach of your payment obligations under Section 5 and such breach continues for 30 days or longer; or

(d) for entities, You have ceased to operate in the ordinary course, made an assignment for the benefit of creditors or similar disposition of your assets, or become the subject of any bankruptcy, reorganization, liquidation, dissolution or similar proceeding.

6.2 Effect of Suspension. If we suspend your right to access or use any portion or all of the Offerings:

(a) You remain responsible for all fees and charges You incur during the period of suspension; and

(b) You will not be entitled to any fee credits for any period of suspension.

6.3 Limiting usage. If applicable to a particular Offering, we retain sole discretion to limit your usage of the Offerings (including without limitation by limiting the number of API requests You may submit ("API Requests")) at any time if your usage of the Offerings exceeds the usage threshold specified in your Paid Plan.

7. Term, Termination and Reservation of Rights

7.1.Term. For Offerings subject to a Paid Plan, the term of this Agreement will commence on the Effective Date and will remain in effect until terminated under this Section 7. Any notice of termination of this Agreement by either party to the other must include a termination date that complies with the notice periods in Section 7.2. For Offerings that are not subject to a Paid Plan, the term of this Agreement will commence on the Effective Date and will remain in effect until You stop accessing or using the Offerings.

7.2.Termination

7.2.1. Termination for convenience. If You are not on a Paid Plan, You may terminate this Agreement for any reason or without reason by ceasing use of the Offering. If You are subscribed to a 'Basic', 'Pro', or 'Team' Propel subscription, You may terminate your subscription at any time by unsubscribing within your account and ceasing use of the Offering. If You are on any other Paid Plan, each party may terminate this Agreement for any reason by giving the other party at least 30 days' notice, either in written format or using the unsubscribe functionality in the platform, if relevant, subject to the provisions in section 7.2.2.

7.2.2. Termination for cause.

7.2.2.1. By either party. Either party may terminate this Agreement for cause if the other party is in material breach of this Agreement and the material breach remains uncured for a period of 30 days from receipt of notice by the other party.

7.2.2.2. By us. We reserve the right to block, terminate or suspend your ability to use the Sites, in whole or in part, without notice and at all times, at the

sole discretion of Valory, as well as close or interrupt the Sites. Valory reserves the right to block, suspend or terminate your right to access and use the Offerings if You violate these Terms or any other terms, laws or policies referenced herein, or if You otherwise create risk or possible legal exposure for Valory. Valory reserves the right to initiate legal proceedings against any person for fraudulent use of the Offerings and any other unlawful acts or act or omissions in breach of these Terms. Reasons for termination may include but are not limited to (a) for cause if we have the right to suspend under Section 6, (b) if our relationship with a third-party partner who provides software or other technology we use to provide the Offerings expires, terminates or requires us to change the way we provide the software or other technology as part of the Offerings, or (c) in order to avoid undue risk of violating the law.

7.2.3. Effect of termination. Upon the termination date:

- 7.2.3.1. all your rights under this Agreement immediately terminate; and
- 7.2.3.2. each party remains responsible for all fees and charges it has incurred through the Termination Date and are responsible for any fees and charges it incurs during the post-termination period;
- 7.2.3.3. Sections 5, 8, 9, 10, 11, 12, 13, 15 and 16 of this Agreement shall survive the expiration or termination of this Agreement for the protection of the party in whose favor they operate. For instance, despite this Agreement between You and us terminating, any dispute raised after You stop accessing or using the Offerings will be subject to the applicable provisions of this Agreement if that dispute relates to your prior access or use.

For any use of the Offerings after the Termination Date, the terms of this Agreement will again apply and, if your use is under a Paid Plan, You will pay the applicable fees at the rates under Section 5. We will not be liable to You for any costs, expenses, or damages arising from any termination or suspension of the Offerings or this Agreement, provided such suspension and/or termination complies with these Terms.

8. Proprietary Rights

- 8.1. Your Content. As between the Parties, You retain all right, title and interest in Your Content. You grant us a non-exclusive, worldwide, royalty-free licence, for the term of this Agreement, to host, store, copy, transmit, process, display and modify Your Content, and to sublicense these rights to our affiliates, subprocessors and infrastructure providers, in each case solely as necessary to provide, secure and support the Offerings. You represent and warrant that You own or hold all rights and consents necessary in Your Content, and that Your Content and our permitted use of it will not infringe or misappropriate any third party's intellectual property, confidentiality, privacy or other rights. We may generate and use aggregated, de-identified data derived from Your Content and from your use of the Offerings for any

business purpose, including to operate, improve, develop and train our products and models, provided such data does not identify You or your users. Following termination You may request the return of Your Content and its deletion. We have no obligation to retain Your Content more than ninety (90) days following termination. We may remove or disable access to any of Your Content that we reasonably believe violates this Agreement, the Acceptable Use Policy, or applicable law.

8.2. Offerings license. We or our licensors own all right, title, and interest in and to the Offerings, and all related technology and intellectual property rights. Subject to the terms of this Agreement, we grant You a limited, revocable, non-exclusive, non-sublicensable, non-transferable license to do the following: (a) access and use the Offerings solely in accordance with this Agreement; and (b) copy, use and display exclusively on your computer screen or on other devices (such as smartphones or tablets) our Content solely in connection with your permitted use of the Offerings, subject to your compliance with these terms. Any use, modification, or redistribution of the Offerings, including any third-party modifications, is at your sole risk, and Valory assumes no responsibility or liability for any such modifications or uses. Except as provided in this Section 8.2, You obtain no rights under this Agreement from us, our affiliates or our licensors to the Offerings, including any related intellectual property rights. Some of Our Content and Third-Party Content may be provided to You under a separate license, such as the Apache License, Version 2.0, or another open source license. In the event of a conflict between this Agreement and any separate license, the separate license will prevail with respect to Our Content or Third-Party Content that is the subject of such separate license. For the avoidance of doubt, the license to use the open-source code does not grant any rights to use Valory's other Offerings (see Section 2), or to use any of its brands, trade names, or trademarks, including but not limited to "Valory," "Olas," or "Pearl" and others per Section 2. This aforementioned license does not imply, and may not be used to suggest any endorsement, sponsorship, affiliation, or partnership with Valory AG.

8.3. License restrictions. Neither You nor any End User will use the Offerings in any manner or for any purpose other than as expressly permitted by this Agreement. Except for as authorized, neither You nor any End User will, or will attempt to (a) modify, distribute, alter, tamper with, repair, or otherwise create derivative works of any Content included in the Offerings (except to the extent content included in the Offerings is provided to You under a separate license that expressly permits the creation of derivative works), (b) reverse engineer, disassemble, or decompile the Offerings or apply any other process or procedure to derive the source code of any software included in the Offerings (except to the extent applicable Swiss law doesn't allow this restriction), (c) access or use the Offerings in a way intended to avoid incurring fees or exceeding usage limits or quotas, (d) use scraping techniques to mine or otherwise scrape data except as permitted by a plan, or (e) resell or sublicense the Offerings unless otherwise agreed in writing. You will not use Our Marks, including names, for example Valory, unless You obtain prior written consent from Valory or our licensors. You will not misrepresent or embellish the relationship between us and You (including by expressing or implying that we support, sponsor, endorse, or contribute to You or your business endeavors). You will not imply any relationship or affiliation between us and You except as expressly permitted by this Agreement.

8.4.Suggestions. If You provide any Suggestions to us or our affiliates, we and our affiliates will be entitled to use the Suggestions without restriction. You hereby irrevocably assign to us all right, title, ownership of and interest in and to such Suggestions and agree to provide us any assistance we require to document, perfect, and maintain our rights in such Suggestions.

8.5.U.S. Government Users. If You are a U.S. Government End User, we are licensing the Offerings to You as a "Commercial Item" as that term is defined in the U.S. Code of Federal Regulations (see 48 C.F.R. § 2.101), and the rights we grant You to the Offerings are the same as the rights we grant to all others under these Terms of Use.

9. Indemnification

9.1.General.

9.1.1. You will defend, indemnify, and hold harmless Valory AG, our affiliates and licensors, and each of their respective employees, officers, directors, and representatives from and against any losses, liabilities, damages, costs and expenses arising out of or relating to any claim concerning: (a) your use of the Offerings, including any interactions with blockchain networks or digital assets, or your breach of this Agreement or your violation of applicable law, or any tax, regulatory, or financial obligations arising from your use of the Offerings, or any rights of any third party; and (b) a dispute between You and any of your customers or users. You agree to promptly reimburse us for all costs, reasonable attorneys' fees and expenses, associated with claims described in (a) and (b) above.

9.1.2. We will defend, indemnify, and hold harmless You and your employees, officers, directors, and representatives from and against any direct Losses arising solely from our gross negligence or willful misconduct that results in death, personal injury, or tangible property damage.

Our indemnification obligation does not apply to Claims arising from:

- 9.1.3. your modification of or combination of the Offerings with third-party software, data, or materials;
- 9.1.4. your use of the Offerings not in accordance with this Agreement; or
- 9.1.5. any Third-Party Content, integrations, or services accessed through the Offerings.

Our indemnification obligations under this Section 9 are subject to the limitations of liability set out in Section 11, including all caps, exclusions of indirect or consequential damages, and applicable legal restrictions. You, as the indemnified party, must promptly notify us of any claim and reasonably cooperate with us in the defense and settlement of such claim(s).

9.2. Intellectual Property.

Intellectual property rights and all other proprietary rights in relation to the Offerings

(including but not limited to all content, software, mobile software, algorithms, code, audio, video, text, animations, files, photographs designs, graphics, layouts, images, video, information and their selection and arrangement) are the exclusive property of Valory or its licensors and are protected by copyright, trademark, patent, trade secret and other intellectual property or proprietary rights laws.

Access to the Offerings does not confer and shall not be considered as conferring upon anyone any license under any of our or any third party's intellectual property rights. Any use of the Offerings, including copying or storing it or them in whole or part, other than for your own, is prohibited without prior consent of Valory.

All intellectual property rights in the Site and Offerings not expressly granted herein are reserved to Valory. All copyright and other proprietary notices shall be retained on all reproductions.

If You provide us with any feedback, suggestions, or comments regarding the Sites or Offerings ("Feedback"), You automatically assign this Feedback to Valory without restriction or payment to You, per Section 8.4 herein.

- 9.2.1. Subject to the limitations in this Section 9, You will defend, indemnify, and hold harmless Valory, its affiliates, and their respective employees, officers, and directors from and against any and all claims, damages, losses, liabilities, costs and expenses arising from any third party claim alleging that any of Your Content infringes or misappropriates that third party's intellectual property rights, and will pay the amount of any adverse final judgment or settlement. You agree to pay any amounts awarded in a final judgement or any settlement negotiated in good faith related to such claims.
- 9.2.2. Subject to the limitations in this Section 9 and the limitations in Section 11, we will defend You and your employees, officers, and directors against any third-party claim alleging that the Offerings infringe or misappropriate that third party's intellectual property rights, and will pay the amount of any adverse final judgment or settlement. Our total aggregate liability for all claims under this Section 9,, including all attorney's fees, court costs, settlements, judgements and reimbursement costs, shall not exceed \$200,000.
- 9.2.3. Neither party will have obligations or liability under this Section 9.2 arising from infringement by You combining the Offerings with any other product, service, software, data, content or method. In addition, we will have no obligations or liability arising from your use of the Offerings after we have notified You to discontinue such use. The remedies provided in this Section 9.2 are the sole and exclusive remedies for any third-party claims of infringement or misappropriation of intellectual property rights by the Offerings or by Your Content.
- 9.2.4. We will have no obligation under this Section 9.2 in respect of any Offering or component made available under an open-source licence, Third-Party Content, or Third-Party Offerings. If the Offerings become, or in our opinion are likely to become, the subject of an infringement claim, we may at our option procure the right to continue use, modify or replace the affected part, or terminate access and refund any prepaid unused fees; upon our doing so, our obligations under this

Section 9.2 in respect of that claim are discharged. We shall have sole control of the defence and settlement of any claim for which we provide indemnity under this Section 9.2.

- 9.3. Process. In no event will a party agree to any settlement of any claim that involves any commitment, other than the payment of money, without the written consent of the other party.
- 9.4. Except as expressly stated, nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license or other rights under any intellectual property right of Valory or any third party.

10. Disclaimers; Risk

10.1.DISCLAIMER. THE OFFERINGS ARE PROVIDED "AS IS." EXCEPT TO THE EXTENT PROHIBITED BY LAW, OR TO THE EXTENT ANY STATUTORY RIGHTS APPLY THAT CANNOT BE EXCLUDED, LIMITED OR WAIVED, WE AND OUR AFFILIATES AND LICENSORS (INCLUDING ANY AI OR AUTOMATED FEATURES) (A) MAKE NO REPRESENTATIONS OR WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE REGARDING THE OFFERINGS OR THE THIRD-PARTY CONTENT, AND (B) DISCLAIM ALL WARRANTIES, INCLUDING ANY IMPLIED OR EXPRESS WARRANTIES (I) OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR ACCURACY, OR QUIET ENJOYMENT, (II) ARISING OUT OF ANY COURSE OF DEALING OR USAGE OF TRADE, (III) THAT THE OFFERINGS OR THIRD-PARTY CONTENT WILL BE UNINTERRUPTED, ERROR FREE OR FREE OF HARMFUL COMPONENTS, AND (IV) THAT ANY CONTENT WILL BE SECURE OR NOT OTHERWISE LOST, DAMAGED OR ALTERED.

IF YOU ARE DISSATISFIED WITH ANY PORTION OF THE OFFERINGS OR WITH THESE TERMS, YOUR SOLE AND EXCLUSIVE REMEDY IS TO DISCONTINUE USE OF THE SERVICES. SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF CERTAIN WARRANTIES OR LIMITATIONS ON STATUTORY RIGHTS, SO SOME OF THE ABOVE EXCLUSIONS MAY NOT APPLY TO YOU.

10.2.CONTENT. YOU UNDERSTAND THAT ANY AND ALL CONTENT AVAILABLE ON THE SITES IS MADE AVAILABLE FOR INFORMATIONAL PURPOSES ONLY AND SHOULD NOT BE CONTRACTUAL OR BINDING IN ANY WAY FOR VALORY. NO INFORMATION PUBLISHED ON THE SITES CONSTITUTES PROFESSIONAL OR LEGAL ADVICE, A SOLICITATION, AN OFFER, OR A RECOMMENDATION TO EFFECT ANY TRANSACTIONS, OR TO CONCLUDE ANY LEGAL ACT OF ANY KIND WHATSOEVER.

THE SITES MAY INCLUDE CONTENT OR LINKS TO CONTENT OR SITES PROVIDED BY THIRD PARTIES, INCLUDING INFORMATION PROVIDED BY OTHER USERS, BLOGGERS, THIRD-PARTY LICENSORS AND/OR REPORTING SERVICES. ALL STATEMENTS AND/OR OPINIONS EXPRESSED IN THESE MATERIALS, AND ALL ARTICLES AND RESPONSES TO QUESTIONS AND OTHER CONTENT, OTHER THAN THE INFORMATION PROVIDED BY VALORY, ARE SOLELY THE OPINIONS AND THE RESPONSIBILITY OF THE PERSON OR ENTITY PROVIDING THOSE MATERIALS. THESE MATERIALS DO NOT NECESSARILY REFLECT THE OPINION OF VALORY. WE ARE NOT RESPONSIBLE, OR LIABLE TO YOU OR

ANY THIRD PARTY, FOR THE CONTENT OR ACCURACY OF ANY MATERIALS PROVIDED BY ANY THIRD PARTIES.

ACCESSING THIRD PARTY CONTENT AND ANY RELIANCE YOU PLACE ON ANY INFORMATION OR CONTENT ON THE SITES IS STRICTLY AT YOUR OWN RISK. PLEASE SEEK THE ADVICE OF PROFESSIONALS, AS APPROPRIATE, REGARDING THE EVALUATION OF ANY SPECIFIC INFORMATION, OPINION, ADVICE OR OTHER CONTENT.

YOU ACKNOWLEDGE THAT ANY INFORMATION OR DOCUMENTATION PROVIDED THROUGH THE SITES OR OFFERINGS IS FOR INFORMATIONAL PURPOSES ONLY AND IS NOT INTENDED TO BE RELIED UPON FOR FINANCIAL, INVESTMENT, TAX, ACCOUNTING, OR LEGAL PURPOSE. YOU AGREE THAT YOU ARE SOLELY RESPONSIBLE FOR OBTAINING INDEPENDENT PROFESSIONAL ADVICE BEFORE ACTING ON SUCH INFORMATION, AND VALORY SHALL NOT BE LIABLE FOR ANY ACTIONS TAKEN BASED ON THE INFORMATION PROVIDED.

10.3.RISKS. YOU EXPRESSLY ACKNOWLEDGE AND AGREE THAT YOUR ACCESS TO AND USE OF THE SITES AND OFFERINGS IS AT YOUR OWN RISK. OUR OFFERINGS RELY ON EMERGING TECHNOLOGIES, SUCH AS ETHEREUM. SOME OFFERINGS ARE SUBJECT TO INCREASED RISK THROUGH YOUR POTENTIAL MISUSE OF THINGS SUCH AS PUBLIC/PRIVATE KEY CRYPTOGRAPHY, OR FAILING TO PROPERLY UPDATE OR RUN SOFTWARE TO ACCOMMODATE PROTOCOL UPGRADES, LIKE THE TRANSITION TO PROOF OF STAKE CONSENSUS. BY USING THE OFFERINGS YOU EXPLICITLY ACKNOWLEDGE AND ACCEPT THESE HEIGHTENED RISKS AND AGREE THAT VALORY SHALL NOT BE LIABLE FOR ANY LOSSES ARISING THEREFROM. YOU REPRESENT THAT YOU ARE FINANCIALLY AND TECHNICALLY SOPHISTICATED ENOUGH TO UNDERSTAND THE INHERENT RISKS ASSOCIATED WITH USING CRYPTOGRAPHIC AND BLOCKCHAIN-BASED SYSTEMS AND UPGRADING YOUR SOFTWARE AND PROCESSES TO ACCOMMODATE PROTOCOL UPGRADES, AND THAT YOU HAVE A WORKING KNOWLEDGE OF THE USAGE AND INTRICACIES OF DIGITAL ASSETS SUCH AS ETHER (ETH) AND OTHER DIGITAL TOKENS, SUCH AS THOSE FOLLOWING THE ERC-20 TOKEN STANDARD. IN PARTICULAR, YOU UNDERSTAND THAT WE DO NOT OPERATE THE ETHEREUM PROTOCOL OR ANY OTHER BLOCKCHAIN PROTOCOL, COMMUNICATE OR EXECUTE PROTOCOL UPGRADES, OR APPROVE OR PROCESS BLOCKCHAIN TRANSACTIONS ON BEHALF OF YOU. YOU FURTHER UNDERSTAND AND ACCEPT THAT BLOCKCHAIN PROTOCOLS PRESENT THEIR OWN RISKS OF USE, THAT SUPPORTING OR PARTICIPATING IN THE PROTOCOL OR ANY OFFERINGS THAT RELY UPON BLOCKCHAIN TECHNOLOGY MAY RESULT IN LOSSES (INCLUDING IF YOUR PARTICIPATION VIOLATES CERTAIN PROTOCOL RULES), THAT BLOCKCHAIN-BASED TRANSACTIONS ARE IRREVERSIBLE, THAT YOUR PRIVATE KEY AND BACKUP SEED PHRASE MUST BE KEPT SECRET AT ALL TIMES, THAT VALORY WILL NOT STORE A BACKUP OF, NOR WILL BE ABLE TO DISCOVER OR RECOVER, YOUR PRIVATE KEY OR BACKUP SEED PHRASE, AND THAT YOU ARE SOLELY RESPONSIBLE FOR ANY APPROVALS OR PERMISSIONS YOU PROVIDE BY CRYPTOGRAPHICALLY SIGNING BLOCKCHAIN MESSAGES OR TRANSACTIONS. YOU FURTHER UNDERSTAND AND ACCEPT THAT DIGITAL TOKENS PRESENT MARKET VOLATILITY RISK, TECHNICAL SOFTWARE RISKS, REGULATORY RISKS, AND CYBERSECURITY RISKS. YOU UNDERSTAND THAT THE COST AND SPEED OF A BLOCKCHAIN-BASED SYSTEM IS VARIABLE, THAT COST MAY INCREASE DRAMATICALLY AT ANY TIME, AND THAT COST AND SPEED IS NOT WITHIN THE CAPABILITY OF VALORY TO

CONTROL. YOU UNDERSTAND THAT PROTOCOL UPGRADES MAY INADVERTENTLY CONTAIN BUGS OR SECURITY VULNERABILITIES THAT MAY RESULT IN LOSS OF FUNCTIONALITY AND ULTIMATELY FUNDS.

YOU UNDERSTAND AND ACCEPT THAT VALORY DOES NOT CONTROL ANY BLOCKCHAIN PROTOCOL, NOR DOES VALORY CONTROL ANY SMART CONTRACT THAT IS NOT OTHERWISE OFFERED BY VALORY AS PART OF THE OFFERINGS. YOU UNDERSTAND AND ACCEPT THAT VALORY DOES NOT CONTROL AND IS NOT RESPONSIBLE FOR THE TRANSITION OF ANY BLOCKCHAIN PROTOCOL FROM PROOF OF WORK TO PROOF OF STAKE CONSENSUS. YOU AGREE THAT YOU ALONE, AND NOT VALORY, IS RESPONSIBLE FOR ANY TRANSACTIONS THAT YOU ENGAGE IN WITH REGARD TO SUPPORTING ANY BLOCKCHAIN PROTOCOL WHETHER THROUGH TRANSACTION VALIDATION OR OTHERWISE, OR ANY TRANSACTIONS THAT YOU ENGAGE IN WITH ANY THIRD-PARTY-DEVELOPED SMART CONTRACT OR TOKEN, INCLUDING TOKENS THAT WERE CREATED BY A THIRD PARTY FOR THE PURPOSE OF FRAUDULENTLY MISREPRESENTING AFFILIATION WITH ANY BLOCKCHAIN PROJECT. YOU ACKNOWLEDGE AND AGREE THAT VALORY IS NOT RESPONSIBLE FOR THE REGULATORY STATUS OR TAX TREATMENT, OR LEGAL CONSEQUENCES OF ANY DIGITAL ASSETS THAT YOU MAY ACCESS OR TRANSACT WITH USING VALORY OFFERINGS. YOU EXPRESSLY ASSUME FULL RESPONSIBILITY FOR ALL OF THE RISKS ASSOCIATED WITH ACCESSING AND USING THE OFFERINGS TO INTERACT WITH BLOCKCHAIN PROTOCOLS. YOU ARE SOLELY RESPONSIBLE FOR DETERMINING AND FULFILLING ANY TAX, REGULATORY, REPORTING, OR OTHER LEGAL OBLIGATIONS ARISING FROM YOUR USE OF DIGITAL ASSETS OR THE OFFERINGS, INCLUDING COMPLIANCE WITH SANCTIONS AND ANTI-MONEY-LAUNDERING REQUIREMENTS.

10.4. VALORY DOES NOT PROVIDE INVESTMENT, FINANCIAL, TAX, LEGAL OR TRADING ADVICE, DOES NOT ASSESS SUITABILITY, DOES NOT EXERCISE DISCRETION OVER ANY USER ASSETS, AND DOES NOT TAKE CUSTODY OF OR CONTROL ANY FUNDS, DIGITAL ASSETS, PRIVATE KEYS OR WALLETS. VALORY IS NOT A FINANCIAL INTERMEDIARY, BROKER, EXCHANGE, CUSTODIAN OR PAYMENT SERVICE PROVIDER, AND DOES NOT CARRY ON ANY ACTIVITY REQUIRING AUTHORISATION UNDER THE SWISS ANTI-MONEY LAUNDERING ACT OR COMPARABLE LEGISLATION.

11. Limitations of Liability

11.1. Limitation of Liability. EXCEPT FOR CLAIMS UNDER SECTION 9,, THE AGGREGATE LIABILITY OF VALORY AG AND ITS AFFILIATES SHALL BE LIMITED AS SET FORTH BELOW. FOR ALL SECTION 9 CLAIMS IN THE AGGREGATE, THE LIABILITY CAP SHALL BE \$200,000 USD, INCLUDING ALL ATTORNEYS' FEES, COURT COSTS, SETTLEMENTS, JUDGEMENTS, AND REIMBURSEMENT COSTS, NOTWITHSTANDING ANY OTHER LIMITATIONS IN THIS AGREEMENT. TO THE EXTENT NOT PROHIBITED BY LAW IN NO EVENT SHALL THE AGGREGATE LIABILITY OF VALORY AG AND ITS AFFILIATES ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE LESSER OF:

11.1.1. A) THE TOTAL AMOUNT PAID TO VALORY AG FOR THE OFFERINGS GIVING RISE TO THE LIABILITY IN THE TWELVE MONTHS PRECEDING THE FIRST INCIDENT OUT OF WHICH THE LIABILITY AROSE;

11.1.2. B) 25,000 CHF;

11.1.3. OR, C) IF NO FEES HAVE BEEN PAID TO VALORY AG, 100 CHF.

IN NO EVENT SHALL THE AGGREGATE LIABILITY OF VALORY AG AND ITS AFFILIATES FOR ALL CLAIMS UNDER THIS AGREEMENT EXCEED THE LIMITS STATED ABOVE, REGARDLESS OF THE NUMBER OF CLAIMS OR THEORY OF LIABILITY.

11.2. THE FOREGOING LIMITATION APPLIES TO ALL CLAIMS ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, BUT DOES NOT LIMIT YOUR PAYMENT OBLIGATIONS UNDER SECTION 5. NOTHING IN THIS AGREEMENT EXCLUDES OR LIMITS LIABILITY TO THE EXTENT IT CANNOT BE EXCLUDED OR LIMITED UNDER MANDATORY LAW, INCLUDING ARTICLE 100 OF THE SWISS CODE OF OBLIGATIONS.

11.3. Exclusion of Consequential and Related Damages. TO THE EXTENT NOT PROHIBITED BY LAW IN NO EVENT WILL VALORY AG OR ITS AFFILIATES HAVE ANY LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT FOR ANY LOST PROFITS, REVENUES, GOODWILL, OR INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, COVER, BUSINESS INTERRUPTION OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF DATA OR FUNDS OR DIGITAL ASSETS, WHETHER AN ACTION IS IN CONTRACT OR TORT AND REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF A PARTY OR ITS AFFILIATES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR IF A PARTY'S OR ITS AFFILIATES' REMEDY OTHERWISE FAILS OF ITS ESSENTIAL PURPOSE. THE FOREGOING DISCLAIMER WILL NOT APPLY TO THE EXTENT PROHIBITED BY LAW.

IN COUNTRIES WHERE THE ABOVE TYPES OF EXCLUSIONS AND LIMITATIONS ARE NOT ALLOWED, VALORY AG IS RESPONSIBLE ONLY FOR LOSSES AND DAMAGES THAT ARE A REASONABLY FORESEEABLE RESULT OF ITS FAILURE TO USE REASONABLE SKILL AND CARE OR OUR BREACH OF THESE TERMS.

12. Binding Arbitration and Class Action Waiver

PLEASE READ THIS SECTION CAREFULLY – IT MAY SIGNIFICANTLY AFFECT YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT.

12.1. Mediation and Binding Arbitration. Any dispute, claim or controversy ("Claim") relating in any way to this Agreement, the Sites, or your use of the Offerings will be resolved by mediation under the rules of the Swiss Arbitration Centre (SAC). If the Claim is not resolved through mediation within 30 days, it shall be finally resolved by binding arbitration administered under the Swiss Rules of International Arbitration of the SAC, conducted in Zug, Switzerland, in English, before a single arbitrator appointed in accordance with those rules. The arbitration award shall be final, binding, and enforceable in any court of competent jurisdiction worldwide pursuant to the New York Convention of 1958. The arbitration process shall be

expedited and cost-effective, and the arbitrator may grant any remedies otherwise available under law, including injunctive relief, subject to the Class Action Waiver in Section 12.2. If mandatory consumer protection laws in your jurisdiction prohibit binding arbitration, You retain any rights to bring claims in a competent court under those laws. In case of dispute, you shall maintain the confidentiality of any proceedings, including but not limited to, any and all information gathered, prepared, and presented for purposes of the litigation or related to the dispute(s) therein. Nothing in this Section prevents either Party from seeking interim, conservatory or injunctive relief from any court of competent jurisdiction at any time.

12.2. Class Action Waiver. YOU AGREE THAT ANY DISPUTE WITH US SHALL ONLY BE RESOLVED ON AN INDIVIDUAL BASIS, AND NOT AS A CLASS ACTION OR ANY OTHER REPRESENTATIVE PROCEEDING. YOU AGREE YOU MAY NOT BRING A CLAIM AS A CLASS OR REPRESENTATIVE ACTION OR ON BEHALF OF ANY OTHER PERSON OR PERSONS. YOU AND WE EXPRESSLY WAIVE ANY RIGHT TO FILE A CLASS ACTION OR SEEK RELIEF ON A CLASS BASIS. Unless both You and we agree, no arbitrator or judge may consolidate more than one person's claims or otherwise preside over any form of a representative or class proceeding. The arbitrator may award injunctive relief only in favor of the individual party seeking relief and only to the extent necessary to provide relief warranted by that party's individual claim. If a court decides that applicable law precludes enforcement of any of this paragraph's limitations as to a particular claim for relief, then that claim (and only that claim) must be severed from the arbitration and may be brought in court. If any court or arbitrator determines that the class action waiver set forth in this paragraph is void or unenforceable for any reason or that an arbitration can proceed on a class basis, then the arbitration provision set forth above shall be deemed null and void in its entirety and the parties shall be deemed to have not agreed to arbitrate disputes.

12.3.30-Day Right to Opt Out. You have the right to opt-out and not be bound by the arbitration and class action waiver provisions set forth above by sending written notice of your decision to opt-out to the email address info@valory.xyz with subject line LEGAL OPT OUT. The notice must be sent within 30 days of your first use of the Offerings, otherwise You shall be bound to arbitrate disputes and will be deemed to have agreed to waive any right to pursue a class action in accordance with the terms of those paragraphs. If You opt-out of these provisions, we will also not be bound by them.

13. Miscellaneous

13.1. Announcements. It is understood and agreed that, no press releases or other public announcement concerning this Agreement as it relates to any of Valory's Offerings valued at or above 2,000 CHF (including its existence and the name and/or mark of the other Party) shall be made by either Party unless the form and text of such announcement shall first have been approved by the other Party, which approval shall not be unreasonably withheld, except for any announcements based on reporting duties under applicable laws and regulations or stock exchange regulations. Each Party further agrees that any news releases made by such Party will recognize the participation and contribution of the other Party. For the avoidance of doubt, You may not use any Valory brands or Marks (as defined in our Terms) without the

prior written approval of Valory. Where prior written approval cannot reasonably be obtained (for example, in the case of decentralized participants), each Party agrees to make only factual and non-promotional public statements referencing the relationship.

13.2. Assignment. You will not assign or otherwise transfer this Agreement or any of your rights, licenses or obligations under this Agreement, without our prior written consent. Any assignment or transfer by You in violation of this Section 13.2 will be void. We may assign our rights, licenses and obligations under these Terms without limitation and without prior consent.

13.3. DAOs. As a blockchain native company, we may interact with and provide certain Offerings to DAOs. Due to the unique nature of DAOs, to the extent the DAO votes in favor of and/or the DAO, or a person / persons / an entity that is legally acting on behalf of the DAO, accepts such Offerings from Valory, the DAO has acknowledged and agreed to these Terms in their entirety.

13.4. Entire Agreement and modifications. This Agreement incorporates the Policies by reference and is the entire agreement between You and us regarding the subject matter of this Agreement. If the terms of this document are inconsistent with the terms contained in any policy, the terms contained in this document will control. Any modification to the terms of this Agreement may be made in accordance with Section 3.4 or by a document signed by all Parties. Any provision contained in this Agreement may only be waived by a document duly signed by the Party waiving such provision.

13.5. Force Majeure. Neither party nor their respective affiliates will be liable for any delay, damage, loss, inconvenience or failure to perform any obligation under this Agreement where the delay, damage, loss, inconvenience or failure results from any cause beyond such party's reasonable control, including but not limited to acts of God, utilities or other telecommunications failures or interruptions, airport closures, cyber attacks, earthquake, storms, fire, bad weather conditions, or other elements of nature, nuclear disasters, pandemics, blockages, embargoes, riots, civil strife, industrial disputes, acts or orders of any local or national government, terrorist activity, war or threat of war. During a Force Majeure event, neither Party shall be required to refund or compensate the other for Losses arising from delay or non-performance, except as otherwise required by law.

13.6. Export and sanctions compliance. In connection with this Agreement, You will comply with all applicable import, re-import, sanctions, anti-boycott, export, and re-export control laws and regulations, including all such laws and regulations that may apply. For clarity, You are solely responsible for compliance related to the manner in which You choose to use the Offerings. You may not use any Offering if You are the subject of U.S. sanctions, EU sanctions or of sanctions consistent with U.S. law imposed by the governments of the country where You are using the Offering. You further represent that You will not use the Offerings to export, re-export, or transfer any software, technology, or data in violation of applicable export control laws, including those of Switzerland, the United States, or the European Union.

13.7. Independent contractors; non-exclusive rights. We and You are independent contractors, and this Agreement will not be construed to create a partnership, joint venture, agency, or employment relationship. Neither party, nor any of their respective affiliates, is an agent of

the other for any purpose or has the authority to bind the other. Both parties reserve the right (a) to develop or have developed for it products, services, concepts, systems, or techniques that are similar to or compete with the products, services, concepts, systems, or techniques developed or contemplated by the other party, and (b) to assist third party developers or systems integrators who may offer products or services which compete with the other party's products or services.

13.8.No representation. You have no right or power to represent Valory or to act in the name of or for the account of Valory.

13.9.Language. All communications and notices made or given pursuant to this Agreement must be in the English language. If we provide a translation of the English language version of this Agreement such translations are for your convenience only, and the English language version of the Agreement will control if there is any conflict or inconsistency.

13.10.Notice.

13.10.1. To You. We may provide any notice to You under this Agreement using commercially reasonable means, including: (i) posting a notice on the Site; (ii) sending a message to the email address then associated with your account; or (iii) using public communication channels. Notices we provide by posting on the Sites or using public communication channels will be effective upon posting, and You are deemed to have received and agreed to any updates to this Agreement upon such posting. Your continued use of the Offerings following notice of a material change constitutes your acceptance of the revised Terms. If You do not agree, You must discontinue use of the relevant Offerings immediately. Notices we provide by email will be effective when we send the email. It is your responsibility to keep your email address current to the extent You have an account. You will be deemed to have received any email sent to the email address then associated with your account when we send the email, whether or not You actually receive the email.

13.10.2. To us. To give us notice under this Agreement, You must contact us by email at info@valory.xyz.

13.11. No third-party beneficiaries. Except as otherwise set forth herein, this Agreement does not create any third-party beneficiary rights in any individual or entity that is not a party to this Agreement.

13.12. No waivers. The failure by us to enforce any provision of this Agreement will not constitute a present or future waiver of such provision, any other provision or these Terms as a whole, nor limit our right to enforce such provision at a later time. All waivers by us must be in writing to be effective.

13.13. Severability. If any portion of this Agreement is held to be invalid or unenforceable by a court or competent jurisdiction, the remaining portions of this Agreement will remain in full force and effect. Any invalid or unenforceable portions will be limited to the minimum extent necessary and interpreted to effect and intent of the original portion. If such construction is not possible, the invalid or unenforceable portion will be severed

from this Agreement. In any case, the rest of the Agreement will remain in full force and effect.

13.14. Notice and Procedure for Making Claims of Copyright Infringement. If You are a copyright owner or agent of the owner, and You believe that your copyright or the copyright of a person on whose behalf You are authorized to act has been infringed, please provide us a written notice at the address below with the following information:

- an electronic or physical signature of the person authorized to act on behalf of the owner of the copyright or other intellectual property interest;
- a description of the copyrighted work or other intellectual property that You claim has been infringed;
- a description of where the material that You claim is infringing is located with respect to the Offerings;
- your address, telephone number, and email address;
- a statement by You that You have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law;
- a statement by You, made under penalty of perjury, that the above information in your notice is accurate and that You are the copyright or intellectual property owner or authorized to act on the copyright or intellectual property owner's behalf.

You can reach us at:

Email: info@valory.xyz

Subject Line: Copyright Notification Mail

Attention: Copyright %

Valory AG

Gubelstrasse 12, 6300 Zug, Switzerland.

13.15. Code of Obligations. Except as otherwise provided in this Agreement, the provisions of the Swiss Code of Obligations shall apply. This Agreement and any non-contractual obligations arising out of or in connection with it, shall be governed by and construed in accordance with the laws of Switzerland, without regard to its conflict-of-laws principles. This clause applies without limiting the dispute resolution provisions in Section 12.1 herein. Any dispute not subject to arbitration under Section 12 shall be submitted to the exclusive jurisdiction of the ordinary courts of the Canton of Zug, Switzerland.

14. Acceptable Use Policy

14.1. "Acceptable Use Policy" means the policy set forth below, as it may be updated by us from time to time. You may use the Offerings only for lawful purposes and in accordance with

these Terms. In particular, You agree not to use or attempt to use, and not to allow third parties to use or attempt to use, the Offerings:

- 14.1.1. in any manner that violates any applicable federal, state, local or international law or regulation (including, without limitation, any laws regarding the export of data or software to and from the US or other countries);
- 14.1.2. for any purpose that violates these Terms or any other terms or policies provided in connection with the Offerings, including but not limited to for any unlawful, invasive, infringing, defamatory or fraudulent purpose (for example, this may include phishing, creating a pyramid scheme or mirroring a website) or accessing any other product or service in a manner that violates the terms of service of such other product or service;
- 14.1.3. to gain unauthorized access to, interfere with, damage or disrupt any parts of the Sites or Offerings, the server(s) on which the Sites or Offerings are stored, or any server, equipment, computer or database connected to the Offerings or the use of the Sites or Offerings, including but not limited to circumventing any aspect of the Sites or Offerings (for example, any thresholds or limits);
- 14.1.4. in any way that could restrict or interfere with anyone from fully enjoying the Sites or harm Valory or any user of the Offerings or expose them to liability;
- 14.1.5. to intimidate, or harass any person or entity, or falsely state, impersonate or otherwise misrepresent You or your affiliation with any person or entity(including, without limitation, by using e-mail addresses or screen names associated with any of the foregoing);
- 14.1.6. to damage, disable, disrupt, overburden or impair the functionality of the Sites or Offerings in any manner;
- 14.1.7. to generate, distribute, facilitate or post spam, unsolicited or bulk electronic communications, advertising, solicitations, promotional materials, chain letters, or pyramid schemes;
- 14.1.8. to upload, post, transmit, distribute or otherwise introduce any viruses, trojan horses, worms, logic bombs, malware, ransomware or spywares or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer software or hardware, mobile devices or telecommunications equipment or any other technologies that may harm the Sites or Offerings or the interests or property of any third parties or of Valory;
- 14.1.9. to export or re-export any applications, code or tools developed by and proprietary to Valory, except as in strict compliance with the export control laws of any relevant jurisdictions and in accordance with posted rules and restrictions;
- 14.1.10. to use any robot, spider, crawler, scraper or other automated means authorized by us to access the Sites or Offerings or to extract data or information from the Sites or Offerings;

- 14.1.11. to commercialize any application, code or any information or software associated with such application and/or the Website, without the prior consent of Valory;
- 14.1.12. to upload, post, transmit, distribute, store or otherwise make publicly available on the Sites or Offerings any personal data of any third party without the person's prior explicit consent;
- 14.1.13. to harvest or otherwise collect information or data about any any person without their consent or use automated scripts to collect information from or otherwise interact with the Sites or Offerings;
- 14.1.14. to upload, post, transmit, distribute, store or otherwise make available content that would constitute, encourage or provide instructions for a criminal offense, infringement or, in the sole judgment of Valory, is objectionable or misleading;
- 14.1.15. to copy, modify, reverse engineer or attempt to extract the source code, distribute, sell, or lease any part of the Sites or Offerings;
- 14.1.16. to circumvent or attempt to circumvent any filtering, security measures or other features designed to protect the Sites or Offerings, or third parties;
- 14.1.17. to attack the Sites or Offerings via a denial-of-service attack or a distributed denial-of-service attack;
- 14.1.18. to infringe upon or violate the rights of Valory, any person or third parties, for example, this may include allowing End Users to infringe or misappropriate the intellectual property rights of others in violation of copyright protections); or
- 14.1.19. to facilitate or assist another person to do any of the above acts.
- 14.2. You also agree that if You learn of any unauthorized or unacceptable use of the Sites or Offerings, by any person or entity, You will promptly notify Valory.
- 14.3. We reserve the right to investigate any suspected violation of this Policy and to suspend or terminate access to the Offerings at our discretion if a violation is confirmed.

15. Confidentiality

"Confidential Information" means non-public information disclosed by Valory to You in connection with the Offerings that is marked confidential or that a reasonable person would understand to be confidential, including our non-public technology, roadmaps, pricing, benchmarks, security documentation and pre-release features. You shall (a) use it only as necessary to receive the Offerings, (b) protect it with no less than reasonable care, and (c) disclose it only to personnel, affiliates, advisers and subcontractors bound by materially equivalent obligations. These obligations do not apply to information that is or becomes public other than through your breach, was lawfully known to You free of obligation, is independently developed without use of the Confidential Information, or is lawfully received from a third party without restriction.

You may disclose where required by law, regulation or a competent authority, giving us prior notice where lawfully permitted. Obligations survive three (3) years from termination; trade secrets remain protected for as long as they qualify as such. For the avoidance of doubt, Feedback and Suggestions are not Confidential Information.

16. Definitions

"API" means an application program interface.

"Base Fees" means the applicable fees based on the Offerings in the Paid Plan before any applicable taxes.

"Content" means any data, text, audio, video or images, software (including machine images), and any documentation.

"DAO" means Decentralized Autonomous Organization.

"End User" means any individual or entity that directly or indirectly through another user: (a) accesses or uses Your Content; or (b) otherwise accesses or uses the Offerings under your account.

"Entity" means any legal person or organization, including but not limited to a corporation, company, partnership, joint venture, association, trust, governmental body, or other form of organization whether incorporated or unincorporated.

"Feedback" means any feedback, suggestions, or comments regarding the Sites or Offerings.

"Losses" means any claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees).

"Our Content" means any software (including machine images), data, text, audio, video, images, or documentation that we offer in connection with the Offerings.

"Our Marks" means any trademarks, service marks, service or trade names, logos, and other designations of Valory AG and their affiliates or licensors that we may make available to You in connection with this Agreement.

"Order" means an order for Offerings executed through an order form directly with Valory, or through a cloud vendor, such as Amazon Web Services, Microsoft Azure, or Google Cloud.

"Policies" means the Acceptable Use Policy, Privacy Policy, any supplemental policies or addendums applicable to any Service as provided to You, and any other policy or terms referenced in or incorporated into this Agreement, each as may be updated by us from time to time.

"Paid Plan" means a paid plan for Offerings, for example a particular tier of Propel with corresponding thresholds for usage, executed directly with Valory via

<https://propel.valory.xyz> or via a cloud vendor, such as Amazon Web Services, Microsoft Azure, or Google Cloud.

"Privacy Policy" means the privacy policy linked at <https://www.valory.xyz/> (and any successor or related locations designated by us), as it may be updated by us from time to time.

"Propel" is a brand and product of Valory AG.

"Service Offerings" means the Services (including associated APIs), Our Content, Our Marks, and any other product or service provided by us under this Agreement. Service Offerings do not include Third-Party Content or Third-Party Services.

"Suggestions" means all suggested improvements to the Service Offerings that You provide to us.

"Third-Party Content" means Content made available to You by any third party on the Sites or in conjunction with the Offerings.

"Your Content" means any content, data, code, text or other material that You or any End User submits to, transfers to, or generates through the Offerings, including any computational results derived from it, but excluding information submitted to a public blockchain protocol.

17. Contact Information

Please do not hesitate to contact us if You have any feedback, comments, requests and other communications relating to this Terms of Use by contacting us at info@valory.xyz.